

CV-26-000068 JACKSON, NICHOLAS TYLER vs DOCTORS MEDICAL CENTER OF MODESTO – a) Defendant Doctors Medical Center of Modesto, Inc.’s Motion to Strike Portions of Plaintiff’s First Amended Complaint – HEARING REQUIRED; b) Defendant Doctors Medical Center of Modesto, Inc.’s Demurrer to the First Amended Complaint – HEARING REQUIRED; c) Defendant’s Motion to Strike the First Amended Complaint – HEARING REQUIRED; d) Defendant’s Demurrer to Plaintiff’s First Amended Complaint - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a-d) Before addressing the merits of these demurrers and motions to strike, the Court has questions regarding the sufficiency of service on the Plaintiff. The proofs of service reflect service solely by electronic transmission. Plaintiff is in propria persona. Pursuant to Code of Civil Procedure section 1010.6(c)(3) and rule 2.251 of the California Rules of Court, a self-represented plaintiff must affirmatively consent to electronic service. The act of electronic filing alone is insufficient to manifest that consent. The Court was unable to locate in the court file for this case a Consent to Electronic Service and Notice of Electronic Service Address (Judicial Council form EFS-005-CV) signed and filed by the Plaintiff or any other document filed by the Plaintiff affirmatively providing consent to electronic service. It therefore seeks clarification from the Moving Parties as to what written authorization the Plaintiff has given them regarding an agreement to electronic service. The following are the tentative rulings for cases calendared before Commissioner Richard D. Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no Tentative Rulings for Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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CV-26-000068 – JACKSON, NICHOLAS TYLER vs DOCTORS MEDICAL CENTER OF MODESTO – a) Defendant Doctors Medical Center of Modesto, Inc.’s Motion to Strike Portions of Plaintiff’s First Amended Complaint – HEARING REQUIRED; b) Defendant Doctors Medical Center of Modesto, Inc.’s Demurrer to the First Amended Complaint – HEARING REQUIRED; c) Defendant’s Motion to Strike the First Amended Complaint – HEARING REQUIRED; d) Defendant’s Demurrer to Plaintiff’s First Amended Complaint - HEARING REQUIRED.

a-d) Before addressing the merits of these demurrers and motions to strike, the Court has questions regarding the sufficiency of service on the Plaintiff. The proofs of service reflect service solely by electronic transmission. Plaintiff is in propria persona. Pursuant to Code of Civil Procedure section 1010.6(c)(3) and rule 2.251 of the California Rules of Court, a self-represented plaintiff must affirmatively consent to electronic service. The act of electronic filing alone is insufficient to manifest that consent.

The Court was unable to locate in the court file for this case a Consent to Electronic Service and Notice of Electronic Service Address (Judicial Council form EFS-005-CV) signed and filed by the Plaintiff or any other document filed by the Plaintiff affirmatively providing consent to electronic service. It therefore seeks clarification from the Moving Parties as to what written authorization the Plaintiff has given them regarding an agreement to electronic service.

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